



CHAPTER clxxxii.

An Act to authorise the mayor aldermen and citizens of the city of Exeter to construct tramways and street improvements and for other purposes. A.D. 1903.

[11th August 1903.]

WHEREAS it is expedient to empower the mayor aldermen and citizens of the city of Exeter (in this Act called “the Corporation”) to construct and maintain the tramways described in this Act :

And whereas the Corporation are or will be at an early date entitled under the Tramways Act 1870 to purchase the existing tramways within the city and they have given notice of their intention to exercise the powers conferred upon them in that behalf :

And whereas it is expedient that the Corporation should be empowered to work the tramways for the time being belonging to the Corporation :

And whereas it is expedient to empower the Corporation to execute the street works described in this Act :

And whereas the Corporation have acquired and constructed works for supplying and are supplying electrical energy within the city and it is expedient that further powers should be conferred upon the Corporation in regard to their electric lighting undertaking :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

A.D. 1903.

And whereas estimates have been prepared by the Corporation for the purposes herein-after mentioned and such estimates are as follow :—

For the construction and equipment of the tramways authorised by this Act	£ 77800
For the reconstruction and equipment of the existing tramways within the city when acquired by the Corporation	14200
For the purchase of the lands and the execution of the street works authorised by this Act	15000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas an absolute majority of the whole number of the council at a meeting held on the twenty-sixth day of November one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Devon Evening Express a local newspaper published and circulating in the city such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate :

And whereas such resolution was published twice in the said Devon Evening Express and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the fourteenth day of January one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the owners and ratepayers of the city by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Devon and with the clerk of the peace for the county of the city of Exeter and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

A.D. 1903.

PRELIMINARY.

1. This Act may be cited as the Exeter Corporation Act 1903. Short title.

2. The following Acts and parts of Acts so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act (namely):— Incorporation of Acts.

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II and III of the Tramways Act 1870 Provided that section 19 shall be read and have effect as if the words "but nothing in this Act contained shall authorise any local authority to place and run carriages upon such tramways and to demand and take tolls and charges in respect of the use of such carriages" were omitted from that section.

3. In this Act the several words and expressions to which meanings are assigned by the Exeter Corporation Act 1900 and by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires— Interpretation.

"The Corporation" means the mayor aldermen and citizens of the city of Exeter;

"The city" means the city of Exeter;

"The council" means the council of the city;

"The town clerk" "the borough fund" "the borough rate" "the district fund" and "the general district rate" mean respectively the town clerk the borough fund the borough rate the district fund and the general district rate of the city;

"The Corporation tramways" means the tramways authorised by this Act and other the tramways for the time being belonging to the Corporation;

"Mechanical power" includes steam electrical and every other motive power not being animal power;

A.D. 1903.

“Engine” includes motor;

“Daily penalty” means penalty for each day on which the offence is continued after conviction.

TRAMWAYS CONSTRUCTION.

Power to
make tram-
ways.

4. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways hereinafter described in the lines and according to the levels and in all respects in accordance with the deposited plans and sections with all proper rails plates junctions turn-tables turnouts crossings passing-places posts poles brackets wires waiting-rooms stables carriage-houses sheds buildings engines dynamos works and conveniences connected therewith Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways herein-before referred to and authorised by this section are as follows:—

Tramway No. 1 (1 mile 1 furlong and 5 chains in length whereof 3 furlongs 4·71 chains will be single line and 6 furlongs 0·29 chain will be double line) commencing in Cowick Street at a point 2 chains or thereabouts west of the intersection of Improvement Place with Cowick Street passing thence in an easterly and north-easterly direction along Cowick Street thence in a northerly and north-easterly direction over Exe Bridge and along New Bridge Street Fore Street High Street and Eastgate and terminating therein at a point 0·8 chain or thereabouts south-west of the intersection of Southernhay East with Eastgate:

Tramway No. 2 (5 furlongs and 1·89 chains in length whereof 2 furlongs 9·66 chains will be single line and 2 furlongs 2·23 chains will be double line) commencing in Alphington Road at a point 2 chains or thereabouts north of the intersection of Stone Lane with Alphington Road passing thence in a northerly direction along Alphington Road thence in a northerly and north-westerly direction along Alphington Street and terminating in Cowick Street by a junction with Tramway No. 1 at or near the intersection of Okehampton Street with Cowick Street:

Tramway No. 3 (2 furlongs and 8·41 chains in length whereof 2 furlongs 1 chain will be single line and 7·41 chains will

be double line) commencing in High Street by a junction with Tramway No. 1 at a point 0·6 chain or thereabouts north-east of the intersection of Queen Street with High Street passing thence in a north-westerly direction along Queen Street and New North Road and terminating therein at a point 2 chains or thereabouts west of the intersection of Elm Grove Road with New North Road :

Tramway No. 4 (7 furlongs and 1·74 chains in length whereof 4 furlongs 1·06 chains will be single line and 3 furlongs 0·68 chain will be double line) commencing in Longbrook Street at a point 1·90 chains or thereabouts south of the main entrance to the Theatre Royal passing thence in a northerly direction along Longbrook Street and Pennsylvania Road thence in an easterly direction along Union Road and terminating therein at a point 1 chain or thereabouts east of the intersection of Sylvan Road with Union Road :

Tramway No. 5 (6 furlongs and 7·80 chains in length whereof 2 furlongs 3·23 chains will be single line and 4 furlongs 4·57 chains will be double line) commencing at St. David's Station Yard by a junction with the existing tramway at a point 1·2 chains or thereabouts north of the termination of the said existing tramway passing thence in an easterly direction into and along the private approach road leading to Bonhay Road thence in a southerly and south-easterly direction along Bonhay Road and New Bridge Street and terminating therein by a junction with Tramway No. 1 at a point 0·7 chain or thereabouts south-west of the intersection of Bonhay Road with New Bridge Street :

Tramway No. 6 (1 furlong and 9·59 chains in length whereof 4·69 chains will be single line and 1 furlong 4·90 chains will be double line) commencing in Denmark Road at a point 2 chains or thereabouts south of the intersection of Spicer Road with Denmark Road passing thence in a northerly direction along Denmark Road and into and along Heavitree Road and terminating therein by a junction with the existing tramway at a point 0·6 chain or thereabouts west of the intersection of Denmark Road with Heavitree Road :

Tramway No. 7 (1 furlong and 6·63 chains in length whereof 1 furlong and 3·10 chains will be single line and 3·53 chains will be double line) partly in the city and partly in the urban district of Heavitree commencing in Blackboy Road in the city by a junction with the existing tramway at a point 0·9 chain or thereabouts west of the intersection of

A.D. 1903.
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Mount Pleasant Road with Pinhoe Road passing in an easterly direction along Blackboy Road and Pinhoe Road and terminating therein in the urban district of Heavitree at a point 0·4 chain or thereabouts east of the intersection of Cemetery Road with Pinhoe Road :

Tramway No. 8 (4 furlongs and 9 chains in length whereof 2 furlongs and 1·4 chains will be single line and 2 furlongs and 7·6 chains will be double line) commencing in Heavitree Road in the city and in the urban district of Heavitree by a junction with the existing tramway at a point 0·3 chain or thereabouts west of the intersection of Polsloe Road with Heavitree Road passing thence in an easterly direction along Heavitree Road and Fore Street Heavitree and terminating therein in the urban district of Heavitree at a point 1·3 chains or thereabouts west of the west end of South View Terrace :

Tramway No. 9 (double line 1·24 chains in length) commencing in High Street by a junction with Tramway No. 1 at a point 0·12 chain or thereabouts west of the west side of London Inn Square passing thence in a northerly direction into and along London Inn Square and terminating therein by a junction with the existing tramway at a point 0·7 chain or thereabouts south-east of the main entrance to the New London Hotel :

Tramway No. 10 (double line in substitution for the existing single line 3·29 chains in length) commencing in Eastgate by a junction with Tramway No. 1 at its termination passing thence in an easterly direction along Eastgate and Sidwell Street and terminating therein by a junction with the existing tramway at a point 1·1 chains or thereabouts east of the intersection of Paris Street with Sidwell Street :

Tramway No. 11 (double line in substitution for the existing single line 1 furlong and 7·25 chains in length) commencing in Sidwell Street by a junction with the existing tramway at a point 1·1 chains or thereabouts south-west of the intersection of York Road with Sidwell Street passing thence in a north-easterly direction along Sidwell Street and Blackboy Road and terminating therein by a junction with the existing tramway at a point 0·6 chain or thereabouts north-east of the intersection of Salem Place with Blackboy Road :

Tramway No. 12 (double line in substitution for the existing single line 3 chains in length) commencing in Blackboy Road by a junction with the existing tramway at a point 3·2 chains or thereabouts west of the intersection of Elmside

with Blackboy Road passing thence in an easterly direction along Blackboy Road and terminating therein by a junction with the existing tramway at a point 0·2 chain or thereabouts west of the intersection of Elmside with Blackboy Road :

Tramway No. 13 (double line in substitution for the existing single line 1·53 chains in length) commencing in Sidwell Street by a junction with Tramway No. 10 at a point 0·6 chain or thereabouts south-west of the intersection of Paris Street with Sidwell Street and passing thence in an easterly direction into and along Paris Street and terminating therein by a junction with the existing tramway at a point 1·6 chains or thereabouts west of the intersection of Jackson's Court with Paris Street :

Tramway No. 14 (double line in substitution for the existing single line and passing-place 8·63 chains in length) commencing in Paris Street by a junction with the existing tramway at a point 1·2 chains or thereabouts east of the intersection of Belgrave Road with Paris Street passing thence in an easterly direction along Paris Street thence in a south-easterly direction into and along Heavitree Road and terminating therein by a junction with the existing tramway at a point 1·45 chains or thereabouts south-east of the intersection of Denmark Road with Heavitree Road :

Tramway No. 15 (double line in substitution for the existing single line 1·49 chains in length) commencing in Heavitree Road by a junction with the existing tramway at a point 2·8 chains or thereabouts south-east of the intersection of College Road with Heavitree Road and terminating therein by a junction with the existing tramway at a point 4·4 chains or thereabouts south-east of the said intersection of College Road with Heavitree Road :

Tramway No. 16 (double line in substitution for the existing single line 5·63 chains in length) situate in Heavitree Road in the city and in the urban district of Heavitree commencing by a junction with the existing tramway at a point 6·5 chains or thereabouts west of the intersection of Polsloe Road with Heavitree Road and terminating by a junction with the existing tramway at a point 0·8 chain or thereabouts west of the said intersection of Polsloe Road with Heavitree Road :

Tramway No. 17 (double line in substitution for the existing single line 8·9 chains in length) commencing in Eastgate by a junction with Tramway No. 1 at its termination passing thence in a south-westerly direction along Eastgate thence in

A.D. 1903.

a north-westerly direction into and along London Inn Square thence in a northerly direction into and along Longbrook Street and in a north-westerly direction into and along New North Road and terminating therein by a junction with the existing tramway at a point 0·9 chain or thereabouts south-east of the entrance to the existing tramway depôt:

Tramway No. 18 (double line in substitution for the existing single line and passing-places 4 chains in length) commencing and terminating in New North Road by junctions with the existing tramway at points respectively 1 chain or thereabouts south-east and 3 chains or thereabouts west of the intersection of Blackall Road with New North Road:

Tramway No. 19 (double line in substitution for the existing single line and passing-places 3 furlongs and 9·44 chains in length) commencing in New North Road by a junction with the existing tramway at a point 0·9 chain or thereabouts east of the intersection of Elm Grove Road with New North Road passing thence in a westerly direction along New North Road and Hele Road thence in a northerly direction along St. David's Hill and in a westerly direction across Bonhay Road and into and along St. David's Station Yard and terminating therein by a junction with the existing tramway at a point 0·8 chain or thereabouts north of the termination of the said existing tramway:

Tramway No. 20 (4 furlongs and 7·80 chains in length whereof 4 furlongs and 1·15 chains will be single line and 6·65 chains will be double line) commencing in High Street by a junction with Tramway No. 1 at a point 0·4 chain or thereabouts north-east of the intersection of South Street with High Street passing thence in a south-easterly direction into and along South Street Holloway Street and Topsham Road and terminating therein at a point 2·8 chains or thereabouts south-east of the intersection of Weirfield Road with Topsham Road:

Provided that the Corporation shall not except with the consent of the owners of the existing tramways within the city construct the tramways by this Act authorised and numbered respectively 10 to 19 until they shall have acquired the existing tramways within the city or such of them as will interfere with the laying down of the tramways by this Act authorised:

Provided further that the Corporation shall not construct so much of Tramway No. 1 as will be situate in those parts

of High Street where the street works No. 1 and No. 3 are situate until the execution of those works respectively. A.D. 1903.

5. The gauge of the Corporation tramways shall be three feet six inches. Provided always that so much of section 34 of the Tramways Act 1870 as limits the extent of the carriage used on any tramway beyond the edge of the wheels of such carriage shall not apply to carriages used on the Corporation tramways but no carriage or engine used on the Corporation tramways shall exceed six feet in width or such other width as may from time to time be prescribed by the Board of Trade. Gauge of tramways.

6. The rails of the Corporation tramways shall be such as the Board of Trade may approve. Rails of tramways.

7. In addition to the requirements of section 26 of the Tramways Act 1870 the Corporation shall before they open or break up any road for the purpose of constructing laying down maintaining and renewing any of the Corporation tramways lay before the Board of Trade a plan showing the proposed mode of constructing laying down maintaining and renewing such tramways and a statement of the materials intended to be used therein and the Corporation shall not commence the construction laying down maintenance and renewal of any of the Corporation tramways or part of any of the Corporation tramways respectively until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement. Plan of proposed mode of construction.

8.—(1) The Corporation shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the Corporation tramways and the substructure upon which the same rest and if the Corporation at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds and to a daily penalty not exceeding five pounds. Penalty for not maintaining rails and roads.

(2) In case it is represented in writing to the Board of Trade by the road authority of any district in which the Corporation tramways or any portion thereof are or is situate or by twenty inhabitant ratepayers of such district that the Corporation have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in

A.D. 1903. — such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Corporation to such penalty or penalties in respect thereof as is or are by this section imposed.

Tramways to be kept on level of surface of road.

9. If and whenever after the passing of this Act any road authority alters the level of any road along or across which any part of the Corporation tramways is laid or authorised to be laid the Corporation may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Cross-overs to be constructed in certain cases.

10. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Corporation shall if and where required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by the means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Power to make additional cross-overs and to double tramway lines.

11.—(1) The Corporation may subject to the provisions of this Act make maintain alter and remove such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the Corporation tramways or for providing access to any engine-house stables or carriage-house or works of the Corporation.

(2) Notwithstanding anything shown on the deposited plans the Corporation may with the consent of the Board of Trade lay down double lines in lieu of single lines or single lines in lieu of double lines or interlacing lines in lieu of double or single lines on any of the Corporation tramways and if at any time the road in which any tramway or part thereof is authorised to be laid or is laid has been or shall be altered or widened the Corporation may with the like consent construct such tramway or part thereof or (as the case may be) take up or reconstruct the same in such position as they may think fit.

(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Corporation shall (not less than one month before commencing the works) give notice in writing

to every owner and occupier of premises abutting on the place where such less space would intervene and such rail shall not (except with the consent of the Board of Trade) be so laid if the owners or occupiers of one-third of such premises by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

A.D. 1903.

12.—(1) Any paving metalling or material excavated by the Corporation in the construction of any works under the authority of this Act from any road under their jurisdiction or control shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such manner as they may think fit.

Application
of road ma-
terials exca-
vated in con-
struction of
works.

(2) Any such paving metalling or material excavated by the Corporation from any road under the jurisdiction or control of any road authority (other than the Corporation) may be applied by the Corporation so far as may be necessary in or towards the reinstating of the road and the maintenance for six months after completion of any of the tramways within the district of such road authority of so much of the roadway on either side of such tramways as the Corporation are by section 28 of the Tramways Act 1870 required to maintain and the Corporation shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of the road authority or to such person or persons as he may appoint to receive the same. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such manner as they may think fit.

(3) Any difference between the Corporation and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by an arbitrator to be nominated by the Board of Trade on the application of either party.

13. Every sanitary authority shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or concurrence of the Corporation and the provisions contained in sections 32 and 33 of the Tramways Act 1870 shall be

Local autho-
rity to have
access to
sewers.

A.D. 1903. applicable in the case of any sewer or private drain of or under the control of the said authority as if the same were a pipe for the supply of gas or water.

Temporary tramways may be made where necessary.

14. Where by reason of the execution of any work affecting the surface or soil of any road along which any of the Corporation tramways is laid it is in the opinion of the Corporation necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Corporation may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued.

Period for completion of works.

15. The tramways authorised by this Act shall be completed within seven years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Inspection by Board of Trade.

16. The tramways authorised by this Act shall not be opened for public traffic until they have been inspected and certified to be fit for such traffic by the Board of Trade.

For protection of London and South Western Railway Company.

17. For the protection of the London and South Western Railway Company (in this section referred to as "the South Western Company") the following provisions shall unless otherwise agreed apply and have effect (that is to say):—

(A) Before constructing or reconstructing any works by this Act authorised or any portion of the existing tramways passing over or under the railways of the South Western Company or within ten yards thereof (herein-after referred to as "the said works") the Corporation shall deliver to the South Western Company for approval by their engineer plans drawings and specifications (in this section referred to as "the said plans") showing the manner in which the said works are intended to be carried out and the materials to be used and in the event of his failing to approve the said plans for twenty-one days after the delivery thereof the same shall be referred for settlement to arbitration as herein-after provided and the said works shall be executed in accordance with the said plans and subsequently maintained by the Corporation at their sole expense and under the superintendence and to the reasonable satisfaction of the engineer of the South Western Company :

(B) Any additional expense of the maintenance of the structure of any of the bridges arising from the construction of the

said works or the working of the tramways thereover and the cost of any underpinning or other works rendered necessary to secure the safety and stability of any such bridges shall be borne and paid by the Corporation : A.D. 1903.

- (c) The South Western Company shall be at liberty at their own expense to divert or stop (but only for so long as may be absolutely necessary for the purposes in this subsection mentioned) any of the tramways passing over or under the railways of the South Western Company if required for the purpose of executing repairs alterations extensions or widenings of any of the bridges carrying the railways of the South Western Company over such tramways or the tramways over the said railways and the South Western Company shall not be liable for any compensation claim demand damages costs or expenses for or in respect of such diversion or stoppage Provided that the powers conferred by this subsection shall only apply in respect of the existing works and powers of the South Western Company :
- (d) Any difference which may arise between the South Western Company and the Corporation touching any of the matters referred to in this section shall be decided by a single arbitrator to be agreed by the parties or failing agreement appointed on the application of either party by the Board of Trade and the arbitration shall be under and subject to the provisions of the Arbitration Act 1889.

18. The following provisions for the protection of the Great Western Railway Company (in this section called "the Great Western Company") shall unless otherwise agreed apply and have effect (that is to say) :— For protection of Great Western Railway Company.

- (1) All works by this Act authorised where the same will be made upon across under or over any bridge or other work belonging to the Great Western Company or will otherwise interfere with the same shall be executed so as not to interfere with the structure of any such bridge or other work and according to plans sections and specifications to be previously submitted to the Great Western Company for their approval and in the event of their failing to approve the said plans sections and specifications for fourteen days after delivery thereof the same shall be referred to arbitration as herein-after provided All such work shall be executed and thereafter maintained according to the plans sections and specifications so approved or determined and under the

A.D. 1903.
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superintendence and to the reasonable satisfaction of the Great Western Company The Corporation shall so construct maintain and use the tramways as not to injuriously affect the structure of any such bridge or other work and in the event of any injury being occasioned to the structure of such bridge or work by the construction maintenance or user of the tramways upon across under or over the same the Great Western Company may make good the injury and may recover from the Corporation the reasonable expenses of so doing :

- (2) Any additional expense of the maintenance of the structure of any of the bridges arising from the construction of the said works or the working of the tramways thereover and the cost of any underpinning or other works rendered necessary to secure the safety and stability of any such bridges shall be borne and paid by the Corporation :
- (3) The Corporation shall not in any manner in the execution maintenance user or repair of any of their works obstruct or interfere with the free uninterrupted and safe user of any railway or other work belonging to the Great Western Company or any traffic thereon :
- (4) If the Great Western Company shall hereafter require to widen lengthen strengthen reconstruct alter or repair any such bridge or the approaches thereto or to widen or alter their railway the Corporation shall afford to the Great Western Company all reasonable and proper facilities for those purposes or any of them and if it shall be necessary for any such purposes that the working or user of any portion of the tramway over such bridge or approaches shall be wholly or in part stopped or delayed or that such portion of the tramway shall be wholly or in part taken up or removed and the Great Western Company shall give to the Corporation seven days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such portion of the tramway shall be stopped or delayed or such portion of the tramway shall be taken up or removed as stated in such notice at the expense of the Great Western Company but under the superintendence if they shall give such superintendence of the Corporation but the working or user of such portion shall not be stopped or delayed for a longer period than may be absolutely necessary for effecting such purposes as aforesaid and such portion of

the tramway shall be restored with all possible dispatch and the Great Western Company shall not be liable for any compensation claims damages or expenses in respect of such delay stoppage or taking up or removal as aforesaid Provided that the powers conferred by this subsection shall apply only in respect of the existing works and powers of the Great Western Company : A.D. 1903.

- (5) If any difference arises under this section between the Corporation and the Great Western Company that difference shall be referred to an arbitrator to be appointed on the application of either party by the Board of Trade.

MECHANICAL POWER.

19. The carriages used on the Corporation tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say) :—

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade :
- (2) The Board of Trade shall make regulations (in this Act referred to as “ the Board of Trade regulations ”) for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the Corporation tramways and for regulating the use of electrical power :
- (3) The Corporation or any person using any mechanical power on the Corporation tramways contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a daily penalty not exceeding five pounds :
- (4) The Board of Trade if they are of opinion—
 - (A) That the Corporation or such person have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered ; or
 - (B) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public ;
 may by order either direct the Corporation or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board

A.D. 1903.

of Trade may impose and the Corporation or such person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

Special provisions as to use of electrical power.

20. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages :—

- (1) The Corporation shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Corporation shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Corporation shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Corporation either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any

electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents : A.D. 1903.

(6) If any difference arises between the Corporation and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :

(7) The expression “Corporation” in this section shall include lessees licencees and any person owning working or running carriages over any tramway of the Corporation.

21. Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration. Alteration of telegraphic lines of Postmaster-General.

22. In the event of any tramways of the Corporation being worked by electricity the following provisions shall have effect :— For protection of Post Office telegraphic lines.

(1) (A) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty’s Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein ;

(B) Any difference which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration :

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay

A.D. 1903.
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the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

- (3) (A) Before any electric line is laid down or any act or work for working the Corporation tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work ;

(B) Any difference which arises between the Postmaster-General and the Corporation as to any requirement so made shall be determined by arbitration :

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Corporation's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the Corporation's works for the purpose of inspecting the Corporation's plant and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations :

- (5) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation or their agents (as the case may be) shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :

- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of the act or execution of the work was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice : A.D. 1903.
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression “electric line” has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression “the Corporation” includes their lessees and any person owning working or running carriages on any of the tramways of the Corporation.

23. The Corporation may reconstruct any tramways for the time being belonging to them and make such alteration thereof as may be necessary or expedient for working the same by mechanical power and for the purpose of working any of the Corporation tramways by mechanical power the Corporation may place construct erect lay down make and maintain in on or under any street such

Reconstruction of tramways and construction of electric works.

A.D. 1903. — posts electric conductors wires apparatus subways tunnels cables tubes and openings as may be requisite or expedient for the convenient working or user of the Corporation tramways by animal or mechanical power or for the transmission of electricity to such tramways.

Apparatus used for mechanical power to be deemed part of tramway.

24. The provisions of sections 26 to 33 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Corporation for the purposes of mechanical power were parts of the tramway.

Attachment of brackets to buildings.

25. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the Corporation tramways by mechanical power :

Provided that--

- (1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :
- (2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1) :
- (3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

26.—(1) Subject to the provisions of this Act the Board of Trade may make byelaws with regard to any of the Corporation tramways upon which mechanical power may be used for all or any of the following purposes (that is to say) :—

A.D. 1903.

Byelaws.

- (A) For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages ;
- (B) For regulating the emission of smoke or steam from engines used on the tramways ;
- (C) For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety ;
- (D) For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engines used for drawing or propelling such carriages ;
- (E) For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

(2) Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

27. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaws sanctioning a higher rate of speed than that authorised by the Board of Trade regulations but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

Byelaws by local authority.

28. The Corporation shall make full compensation to the Exeter Gas Light and Coke Company for any loss or damage which may occur to their mains pipes and apparatus by fusion or electrolytic action caused by the exercise of any of the powers of this Act conferred upon the Corporation.

Compensation to Exeter Gas Company in case of damage from fusion or electrolytic action.

FARES RATES AND CHARGES.

29.—(1) The Corporation may demand and take for every passenger travelling upon the Corporation tramways or any part or parts thereof including every expense incidental to the conveyance

Fares for passengers.

A.D. 1903. any rates or charges not exceeding one penny per mile and in computing the said rates and charges the fraction of a mile shall be deemed a mile but in no case shall the Corporation be bound to charge a less sum than twopence.

(2) Provided that the Corporation may appoint stages not less than one mile in length upon any of the Corporation tramways and may demand and take for every passenger travelling upon such tramways including every expense incidental to the conveyance any rates or charges not exceeding one penny per stage and for this purpose the fraction of a stage shall be deemed a stage.

Passengers' luggage.

30. Every passenger travelling upon the Corporation tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof. Provided that such luggage is carried by hand and at the responsibility of the passenger and does not occupy any part of a seat nor is of a form or description to annoy or inconvenience other passengers.

As to fares on Sundays or holidays

31. The Corporation shall not take or demand on Sunday or any public holiday any higher rates or charges than those levied by them on ordinary week days.

Cheap fares for labouring classes.

32.—(1) The Corporation or their lessees at all times after the opening of the Corporation tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight o'clock in the morning or earlier than five o'clock in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance (the Corporation nevertheless not being required to take any fare less than one penny) On Saturdays the Corporation or their lessees in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purpose.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Corporation or their lessees to provide such service as may appear to the Board to be reasonable.

(3) The Corporation or their lessees (as the case may be) shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section. A.D. 1903. —

33. The Corporation may demand and take in respect of animals goods and parcels conveyed by them on the Corporation tramways including every expense incidental to the conveyance any rates or charges not exceeding those specified in the Second Schedule to this Act subject to the regulations in that behalf therein contained. Rates for goods.

34. The Corporation shall not be bound unless they think fit to carry on the Corporation tramways any goods animals or other things other than passengers and passengers' luggage under and subject to the foregoing provisions of this Act. Corporation not bound to carry animals and goods.

35. The rates and charges by this Act authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Corporation may by notice to be annexed to the list of rates and charges appoint. Payment of rates.

36. If at any time after three years from the opening for public traffic of the Corporation tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the Corporation tramways or any portion thereof it is represented in writing to the Board of Trade by the local authority of any district in which the Corporation tramways or such portion are or is wholly or partly situate or by twenty inhabitant ratepayers of that district or by the Corporation that under the circumstances then existing all or any of the rates or other charges demanded and taken in respect of the traffic on the Corporation tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the rates or charges should be revised the said Board may subject to the maximum rates and charges authorised by this Act by order in writing alter modify reduce or increase all or any of the rates or charges to be taken in respect of the Corporation tramways or of any portion thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section. Periodical revision of rates and charges.

GENERAL TRAMWAY PROVISIONS.

37. Notwithstanding anything in the Tramways Act 1870 to the contrary the Corporation may place and run carriages on and Power to work tramways.

A.D. 1903. — may work and may demand and take tolls and charges in respect of any tramways for the time being belonging to or leased to them or over which they exercise running powers and in respect of the use of such carriages and may provide such stables buildings carriages trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the said tramways by animal or mechanical power.

Regulations
by Corpora-
tion.

38. The regulations authorised by the Tramways Act 1870 to be made by the promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the Corporation be made by the Corporation alone.

Agreements
between
Corporation
and owners
of existing
tramways.

39. The Corporation on the one hand and the owners of the existing tramways within the city or partly within the city and partly in the urban district of Heavitree on the other hand may enter into and carry into effect agreements with respect to the purchase by the Corporation of any such tramways or the purchase or hire of any lands buildings works rolling-stock or plant in connexion therewith or with respect to an alteration of the period prescribed by the Tramways Act 1870 for the compulsory purchase of any tramways within the city.

Tramways
deemed to be
in city where
city bound-
ary passes
along any
street.

40. Where any street or any imaginary line therein forms the city boundary and any tramway is now laid or is authorised by this Act to be laid in such street the whole width of the tramway shall for the purposes of this Act and the Tramways Act 1870 be deemed to have been and to be within the city notwithstanding that one or more of the rails and part of the substructure is or are situate in the adjoining district.

Agreements
as to repair
of streets.

41. The Corporation and any road authority may enter into and carry into effect agreements for or in relation to the repair by the contracting parties or either of them of the streets or any part thereof in which for the time being any Corporation tramways may be laid.

Junction
with tram-
ways outside
city.

42. The Corporation may form junctions between the Corporation tramways and any tramways tramroads or light railways without the city which can be worked in connexion therewith but only with the consent of the owners and lessees of such tramways tramroads and light railways respectively and of the local and road authority within whose jurisdiction such junctions would be formed.

43.—(1) The Corporation on the one hand and the owner or lessee of any tramway within or beyond the city which can be worked with any of the Corporation tramways (each of whom is in this Act referred to as “the owning authority”) on the other hand may subject to the provisions of this Act enter into and fulfil contracts and agreements with respect to the following purposes or any of them and all matters incidental or necessary thereto (that is to say):—

A.D. 1903.
Working
agreements.

- (A) The working running over use management occupation and maintenance by any of the contracting parties of the undertakings and tramways of or leased to the other or others of them or any part or parts thereof respectively ;
- (B) The supply to any of the contracting parties of motive power by the other or others of them ;
- (C) The interchange accommodation and forwarding of carriages passengers and traffic coming from or destined for the respective undertakings of leased to or worked by the contracting parties or any of them ;
- (D) The fixing payment collection and apportionment of tolls rates charges or other receipts arising upon the respective tramways ;
- (E) The appointment of joint committees for the carrying into effect of such agreements.

(2) For the purposes of and during the continuance of any such agreement the Corporation or the owning authority working running over managing occupying or maintaining any tramways shall in accordance with and to the extent provided by such agreement have and may exercise in respect of the tramways worked run over managed occupied or maintained by them all such and the like powers rights and remedies for the taking collection and recovery of rates and charges and otherwise howsoever as are by or under the Acts respectively relating to such tramways conferred upon the Corporation or owning authority.

(3) No electrical energy shall be supplied by the Corporation under the provisions of this section in any district in which any local authority company or person shall at the time of entering into such contract or agreement be supplying energy under statutory authority without the consent in writing of such local authority company or person.

(4) In this section the expression “tramway” shall include any tramroad or light railway.

A.D. 1903.

Application
of Convey-
ance of Mails
Act 1893.

44. The Conveyance of Mails Act 1893 shall extend and apply to all the tramways of the Corporation as if the same had been authorised by an Act of Parliament passed after the first day of January one thousand eight hundred and ninety-three.

Omnibuses in
connexion
with tram-
ways.

45. The Corporation may provide and run omnibuses within the city in connexion with the Corporation tramways when the running of carriages thereon is impracticable or during the construction alteration or repair thereof or in prolongation of any tramway route the extension of which may be contemplated by the Corporation and may demand and take rates and fares for the use of such omnibuses.

Power to ac-
quire patent
rights.

46. For the purpose of using mechanical power the Corporation may acquire hold and exercise patent and other rights or licences relating to motive power or otherwise but not so as to acquire any exclusive right therein.

Penalty for
malicious
damage.

47. If any person wilfully does or causes to be done with respect to any apparatus used for or in connexion with the working of any of the Corporation tramways anything which is calculated to obstruct or interfere with the working of such tramways or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any of the Corporation tramways shall be liable to a penalty not exceeding twenty pounds.

Regulations
as to street
traffic.

48.—(1) The Corporation may from time to time make regulations with respect to those streets to be specified in the regulations in which tramways are constructed or which are specially liable to be obstructed by reason of the amount or nature of the traffic requiring the drivers of slow-moving vehicles to keep their vehicles to a particular portion of the street.

(2) All regulations under this section shall be subject to the approval of the Secretary of State.

(3) Any person who shall contravene any such regulation after warning given by word or signal by a police constable stationed in the street to direct the traffic shall be liable to a penalty not exceeding forty shillings.

Orders &c.
of Board of
Trade.

49. All orders regulations and byelaws made by the Board of Trade under the authority of this Act shall be signed by a secretary or an assistant secretary of the Board.

50. Any penalty under this Act or under any byelaws or regulations made under this Act may be recovered in manner provided by the Summary Jurisdiction Acts. A.D. 1903.
Recovery of penalties.

51. Notwithstanding anything contained in this Act the Corporation shall not interfere with any of the existing tramways within the city without the consent of the owners of such tramways until they shall have acquired such tramways respectively. Corporation not to interfere with existing tramways until acquired.

52. From and after the acquisition by the Corporation of any tramway within the city or partly within the city and partly in the urban district of Heavitree the enactments relating to such tramway shall cease to apply thereto and the provisions relating to tramways of this Act shall be substituted therefor and shall so far as the same are applicable extend and apply to all the tramways of the Corporation and to the Corporation in relation thereto. Enactments relating to purchased tramways to cease.

STREET WORKS AND LANDS.

53. Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the street works herein-after mentioned with all proper approaches embankments retaining walls works and conveniences connected therewith or incident thereto. Power to make street improvements.

The street works herein-before referred to and authorised by this Act are—

Street work No. 1.—A widening in High Street on the south-east side :

Street work No. 2.—A further widening of High Street on the south-east side :

Street work No. 3.—A further widening of High Street on the south-east side :

Street work No. 4.—A widening of North Street on the south-west side.

54. In the construction of the street works authorised by this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of lateral deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding two feet either upwards or downwards. Limits of deviation.

55. Subject to the provisions and for the purposes of this Act (including the providing of space for the erection of buildings adjoining or near to any street) the Corporation may enter on take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference. Power to acquire lands.

A.D. 1903.

Period for
completion
of works.

56. If the street works by this Act authorised are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Corporation for making and completing the street works or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Period for
compulsory
purchase of
lands.

57. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Incorporation of sections from the Act of 1900.

58.—(1) The following sections of the Exeter Corporation Act 1900 are incorporated with this Act and shall extend and apply to and in relation to the works by this Act authorised and to and in relation to the lands which the Corporation are authorised to enter upon and take under the provisions of this Act as if those sections with the necessary modifications were set out in this Act (namely):—

Section 47 Power to make subsidiary works ;

Section 48 Temporary stoppage of streets ;

Section 55 Correction of errors &c. in deposited plans and book of reference ;

Section 57 Persons under disability may grant easements &c. ;

Section 58 Power to appropriate lands for purposes of Act ;

Section 59 Power to purchase additional lands by agreement ;

Section 60 Owners may be required to sell parts only of certain lands and buildings ;

Section 62 Power to retain sell &c. lands ;

Section 63 Proceeds of sale of surplus lands :

Provided that the said section 60 shall apply in respect of the houses buildings or manufactories described or referred to in the First Schedule to this Act.

(2) In any appropriation or user of lands under the provisions of the said section 58 the Corporation shall debit the account for which the said lands are appropriated or used with a reasonable sum by way of purchase money or rent for the said lands and shall carry that sum to the credit of the fund out of which the said lands were acquired.

Restriction
on taking
houses of
labouring
class.

59.—(1) The Corporation shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth

day of December but have been or shall be subsequently so occupied. A.D. 1903.

(2) If the Corporation acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

ELECTRICITY.

60.—(1) If the local authority for any district adjoining the area which the Corporation are for the time being authorised to supply with electrical energy are or shall be authorised by Provisional Order confirmed by Parliament to supply energy or if any company shall be authorised to supply energy in any such district the Corporation and any such local authority or company may with the approval of the Board of Trade enter into and carry into effect agreements for the supply of electrical energy in bulk by the Corporation to such local authority or company.

Supply of electrical energy outside city and transfer of undertaking.

(2) And any such local authority authorised to transfer their undertaking may with the approval of the Board of Trade transfer their electricity undertaking to the Corporation and the Corporation may accept such transfer and may raise money for the purpose of the undertaking and transfer under the provisions of the Electric Lighting Acts 1882 and 1888 in like manner as if such district were part of the area of supply of the Corporation Any capital money received by any local authority in respect of any transfer under this section shall be applied by such authority in manner provided by subsection (2) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

61. The Corporation on the one hand and any local authority company or person owning or working light railways or tramways without the city which are connected directly or indirectly with

Supply of electrical energy for traction purposes.

A.D. 1903. — light railways or tramways within the city on the other hand may enter into and carry into effect agreements for the supply by the Corporation to such authority company or person of electrical energy for the purposes for which such authority company or person is empowered to use the same. Provided that no energy shall be supplied by the Corporation under the provisions of this section in any district in which any local authority company or person shall at the time of entering into such agreement be supplying energy under statutory authority without the consent in writing of such local authority company or person.

Power to
supply elec-
tric fittings.

62.—(1) The Corporation may provide sell let for hire and fix set up alter repair and remove (but shall not manufacture) lamps meters electric lines fittings motors apparatus and things for lighting and motive power and for all other purposes for which electrical energy can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electrical energy and may provide all materials and do all works necessary or proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such lamps meters electric lines fittings motors apparatus and things as aforesaid and for securing their safety and return to the Corporation as the Corporation may think fit or as may be agreed upon between them and the person to or for whom the same are sold let fixed set up altered repaired or removed.

(2) No lamp meter electric line fitting motor apparatus or thing let for hire by the Corporation shall be subject to distress or to the landlord's remedy for rent or to be taken in execution under any process of any court or any proceeding in bankruptcy against the person or persons in whose possession the same may be. Provided that such lamp meter electric line fitting motor apparatus or thing is marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof.

Corporation
may refuse to
supply elec-
trical energy
in certain
cases.

63. The Corporation may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear whether any such payments be due to the Corporation in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

As to supply
of electricity
where con-
sumer has
separate
supply.

64.—(1) Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Corporation a supply of electrical energy to premises having a separate supply unless such person shall have

previously agreed to pay to the Corporation such minimum annual sum as will give to the Corporation a reasonable return on the capital expenditure and other standing charges incurred by the Corporation to meet the possible maximum demand of such person. A.D. 1903.

(2) In case the Corporation and the person demanding such supply of electrical energy shall fail to agree as to the amount of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an arbitrator to be appointed by the Board of Trade.

FINANCIAL PROVISIONS.

65.—(1) The Corporation may independently of any other borrowing power borrow at interest any sum or sums of money for the purposes herein-after mentioned not exceeding the respective amounts following (that is to say):— Power to borrow.

- (A) For the construction and equipment of the tramways by this Act authorised the sum of eighty thousand pounds;
- (B) For the purchase of the existing tramways within the city the sum requisite for that purpose;
- (C) For the reconstruction and equipment of the existing tramways when so purchased the sum of fifteen thousand pounds;
- (D) For the purchase of lands and the execution of the street works by this Act authorised the sum of fifteen thousand pounds;
- (E) For paying the costs and expenses of this Act as herein-after provided the sum requisite for that purpose.

(2) In addition to the moneys which the Corporation are by this section authorised to borrow they may borrow such further sums of money for tramway purposes as the Board of Trade may sanction and such further sums of money for any of the other purposes mentioned in this section or for other the purposes of this Act as the Local Government Board may sanction.

(3) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Corporation may in regard to moneys borrowed for tramway purposes and for the payment of the costs and expenses of this Act mortgage or charge the revenue of their tramway undertaking and the district fund and general district rate or either of such securities and in regard to moneys borrowed for any of the other purposes of this Act they may mortgage or charge the district fund and general district rate or either of such securities.

A.D. 1903.

Periods for
discharge of
loans.

66. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods following (that is to say):—

As to moneys borrowed for the purposes (A) (B) and (C) mentioned in the last preceding section within thirty years from the date or dates of the borrowing of the same ;

As to moneys borrowed for the purposes (D) mentioned in the last preceding section within sixty years from the date or dates of the borrowing of the same ;

As to moneys borrowed for the purpose (E) in the last preceding section mentioned within five years from the date or dates of the borrowing of the same ;

As to moneys borrowed with the sanction of the Board of Trade or the Local Government Board within the periods not exceeding sixty years sanctioned by those Boards respectively.

Incorporation of sections from Act of 1900.

67. The following sections of the Exeter Corporation Act 1900 are incorporated with this Act and shall extend and apply in regard to moneys borrowed under this Act as if those sections with the necessary modifications were set out in this Act (namely):—

Section 66 Certain regulations of Public Health Act as to borrowing not to apply ;

Section 67 Provisions of Public Health Act as to mortgages to apply ;

Section 69 Mode of payment off of money borrowed ;

Section 70 Sinking fund ;

Section 71 Protection of lender from inquiry ;

Section 72 Corporation not to regard trusts ;

Section 73 Appointment of receiver ;

Section 74 Power to re-borrow ;

Section 75 Annual return to Local Government Board ;

Section 76 Application of money borrowed ;

Section 78 Inquiries by Local Government Board.

Application of revenue of tramway undertaking and as to deficiency.

68.—(1) The Corporation shall keep the accounts in respect of their tramway undertaking separate from their other accounts distinguishing therein capital from revenue and shall apply all money received by them on account of revenue in respect of their tramway undertaking in the manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking ;

Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of the undertaking ;

Thirdly In providing the requisite instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking ;

Fourthly In extending and improving (if the Corporation think fit) any works for the purposes of the undertaking ;

Fifthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Corporation upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Corporation shall carry to the district fund so much of any balance remaining in any year of the income of the undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the undertaking shall be made good and any expenses incurred by the Corporation relating to their tramway undertaking (other than expenses defrayed out of borrowed money) shall be defrayed out of the district fund and general district rate.

69. In the exercise of the borrowing powers and the keeping of the accounts of the Corporation in regard to their tramway undertaking and their electricity undertaking the Corporation may apportion between those undertakings any expenditure incurred for

Apportion-
ment of ex-
penses be-
tween tram-
way and elec-
tricity under-
takings.

A.D. 1903. — purposes common to such undertakings but in such apportionment regard shall be had to the undertaking primarily benefited.

Moneys borrowed for electricity undertaking not to be taken into account under Public Health Act.

70.—(1) In calculating the amount which the Corporation are entitled to borrow under the Public Health Act 1875 the amount which the Corporation have already borrowed as well as the amounts which they may hereafter borrow in respect of their electricity undertaking shall not be taken into account.

(2) Section 75 (Annual return to Local Government Board) of the Act of 1900 shall extend and apply to all moneys borrowed by the Corporation for the purposes of their electricity undertaking whether borrowed under the Public Health Act 1875 or otherwise.

As to expenses.

71. Any expenses incurred by the Corporation in carrying into effect the provisions of this Act with respect to their electricity undertaking shall be deemed to be expenses incurred by the Corporation under the Electric Lighting Act 1882 and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses.

Alteration of date for filling up annual accounts for electric lighting.

72. Notwithstanding anything contained in section 9 of the Electric Lighting Act 1882 the annual statement of accounts of the electricity undertaking of the Corporation shall after the passing of this Act be filled up on or before the twenty-fourth day of June in every year and shall be made up to the thirty-first day of March next preceding and section 9 of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the undertaking of the Corporation as if the twenty-fourth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December.

Authentication and service of notices.

73.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the city requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the city may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post

addressed to the secretary of the company at their registered office A.D. 1903.
or at their principal office or place of business. —

74. All the costs charges and expenses preliminary to and of Costs of Act.
and incidental to the preparing applying for obtaining and passing
of this Act as taxed by the taxing officer of the House of Lords or
of the House of Commons shall be paid by the Corporation and may
be paid in the first instance out of any moneys in their hands but
shall be charged to and recouped by the moneys borrowed under the
provisions of this Act.

A.D. 1903. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

BUILDINGS AND PREMISES OF WHICH PART ONLY MAY BE TAKEN.

Area.	Numbers on deposited Plans in respect of the Street Works by this Act authorised.
The city of Exeter	11 27 28 29.

THE SECOND SCHEDULE.

TRAMWAY RATES AND CHARGES.

RATES FOR ANIMALS AND GOODS.

<i>Animals.</i>	Per mile. s. d.
For every horse mule or other beast of draught or burden	0 4
For every ox cow bull or head of cattle	0 3
For every calf pig sheep or small animal	0 1½

Goods.

For all coals coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways	per ton	0 2
For all iron ironstone iron ore pig iron bar iron rod iron sheet iron hoop iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought iron not otherwise specially classed herein and for heavy iron castings including railway chairs	per ton	0 2½

Per mile.
s. d.

A.D. 1903.

For all sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings - - - - - per ton	0	3
For cotton wools drugs manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein - - - - - per ton	0	4
For every carriage of whatever description under one ton in weight tenpence with the additional charge of twopence per quarter of a ton over one ton in weight.		

*Parcels.*Any distance.
s. d.

For any parcel not exceeding 7 lbs. in weight - - - - -	0	3
For any parcel exceeding 7 lbs. and not exceeding 14 lbs. in weight -	0	5
For any parcel exceeding 14 lbs. and not exceeding 28 lbs. in weight	0	7
For any parcel exceeding 28 lbs. and not exceeding 56 lbs. in weight	0	9
For any parcel exceeding 56 lbs. such sum as the Corporation may think fit :		

Provided always that articles sent in large aggregate quantities
although made up in separate parcels such as bags of sugar coffee
meal and the like shall not be deemed small parcels but that term
shall apply only to single parcels in separate packages.

*For the carriage of single articles of great weight.*Per mile.
s. d.

For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage shall exceed four tons but shall not exceed eight tons such sum as the Corporation may think fit not exceeding - - - - - per ton	1	0
For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage shall exceed eight tons such sum as the Corporation may think fit.		

Regulations as to weight.

For articles or animals conveyed on the tramways for a less distance
than three miles the Corporation may demand rates and charges as for
three miles ;

A fraction of a mile beyond an integral number of miles shall be deemed
a mile ;

For the fraction of a ton the Corporation may demand rates according to
the number of quarters of a ton in such fraction and if there be a fraction of
a quarter of a ton such fraction shall be deemed a quarter of a ton ;

With respect to all articles except stone and timber the weight shall be
determined according to Imperial avoirdupois weight ;

A.D. 1903.

—

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity ;

In addition to the foregoing rates the Corporation may demand such charges as are reasonable for loading and unloading the animals and goods and if any difference shall arise as to the reasonableness of any such charge the matter in difference shall be settled by the Board of Trade.

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CHAPTER clxxxiii.

An Act to extend the time for the completion of certain railways by the Barry Railway Company to confirm an agreement between the Company and certain landowners to empower the Company to raise additional capital and for other purposes. A.D. 1903.
—
[11th August 1903.]

WHEREAS under the powers conferred upon them by the Barry Dock and Railways Act 1881 and subsequent Acts the Barry Railway Company (hereinafter referred to as “the Company”) have constructed dock works and railways in connection therewith in the county of Glamorgan : 47 & 48 Vict.
c. cclvii.

And whereas by the Barry Railway Act 1896 (hereinafter referred to as “the Act of 1896”) the Company were authorised to construct a certain railway therein described as Railway No. 2 in the county of Glamorgan : 59 & 60 Vict.
c. cxviii

And whereas the period limited by the Act of 1896 as extended by the Barry Railway (Extension of Time) Act 1901 (hereinafter referred to as “the Act of 1901”) for the completion of the said railway will expire on the seventh day of August one thousand nine hundred and three and it is expedient that the said period should be further extended : 1 Edw. 7.
c. ci.

And whereas by the Barry Railway Act 1898 (hereinafter referred to as “the Act of 1898”) the Company were authorised to construct certain railways in the counties of Glamorgan and Monmouth : 61 & 62 Vict.
c. cxlii.

And whereas the period limited by the Act of 1898 for the completion of the said railways will expire on the twenty-fifth day of July one thousand nine hundred and three and it is expedient that the said period should be extended :

And whereas it is expedient that the agreement of which a copy is set out in the Schedule to this Act should be confirmed and
[Price 9d.]
A
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